

1. The default entered on November 7, 2025, is set aside and **VACATED**.
2. The default judgment entered on November 13, 2025, is **VACATED**.
3. Any and all writ(s) of execution and/or abstract(s) of judgment are hereby **VACATED, RECALLED and QUASHED**, including, but not limited to the writ of execution issued November 26, 2025.
4. If any abstract(s) of judgment were recorded, Plaintiff shall, within thirty (30) days of notice of entry of this order, take all reasonable steps to prepare and record with the County Recorder a release of the abstract(s) of judgment and any judgment lien thereunder, pursuant to Code of Civil Procedure section 697.400 and all applicable law. Thereafter, Plaintiff shall file and serve a Notice of Release of Lien.
5. Anderson shall file a responsive pleading no later than October 28, 2026.
6. Anderson shall prepare a proposed order consistent with this ruling, submit it to Bruce for approval as to form, and lodge it with the Court.

8. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
2ND AMENDED COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Before the Court is a demurrer by defendants City of Richmond and Hector Lopez, City Senior Planner, to the first amended complaint. For the reasons set forth, the Court **SUSTAINS** the demurrer as set forth further below.

Background

In his operative second amended complaint ("2AC"), Plaintiff alleges he is the owner of a duplex located at 815-831 24th Street in Richmond (the "Property"). (2AC ¶ 4.) The Court has detailed Plaintiff's underlying factual allegations in its two prior rulings on the defendants' demurrers to the original complaint and the first amended complaint ("FAC"). (1/27/2026 Order; 7/13/2026 Order.)

In the 2AC, Plaintiff's allegations reiterate and expand on the history of the application process, including lengthy allegations regarding his communications with defendant Lopez, a city planner who retired shortly after Plaintiff filed this lawsuit, various utilities, and others. (2AC ¶¶ 1, 3-42, 50, 51, 59-75.) Much of that history was set forth in great detail in the Court's ruling on the demurrer to the FAC. (7/13/2026 Order.)

In summary, Plaintiff alleges he initially applied to the City for approval of a lot split for the Property, but he later modified his application to ask the City to approve a condominium conversion for the two-unit Property. He alleges that he submitted an application on November 25, 2024 for a condominium conversion (2AC ¶ 22 and Exh. I, which is dated November 26, 2024 and refers to "splitting the duplex to 2 separate [sic] condo or town house), but that the City "altered" the application, in the version in the City's records is largely blank, though the signature appears. (2AC ¶¶ 23-27 and Exh. J.) The City planning department later continued to treat his application as one for a

lot split and indicated it would impose conditions for moving the utility boxes. (2AC ¶¶ 35-42.)

As of the date Plaintiff filed his original complaint on July 31, 2025, the City had not set a hearing on his lot split/condominium conversion application since early March 2025. Mr. Malboubi alleges that the City did not hold any Planning Commission hearings in April and May 2025 despite Mr. Malboubi's pending application and request for a hearing, then scheduled a hearing in June 2025 but informing him the agenda was full and did not set any hearing on the application in July 2025. (2AC ¶¶ 59-75.)

After Mr. Malboubi filed his original complaint, the defendants filed a demurrer to the complaint and each of its nine causes of action on multiple grounds. The demurrer was set for hearing on December 22, 2025, but the Court continued the hearing on its own motion to January 26, 2026. The demurrer based on lack of exhaustion was overruled based on the state of the record before the Court at the time, but the demurrers to all of the causes of action were sustained, with leave to amend. (1/27/2026 Order.)

On February 2, 2026, Plaintiff filed his FAC. The defendants again demurred to the FAC on multiple grounds, including failure to exhaust administrative remedies in addition to substantive deficiencies in the causes of action. Defendants' lack of exhaustion position was based on the fact that the Planning Commission had given Mr. Malboubi the relief he was requesting in the FAC, a hearing on his lot split/condo conversion application, in January 2026 and adopted Resolution 26-01. The Resolution granted approval of the lot split with conditions, including requiring three utility meters to be moved so that each parcel would have its own utility meters, and denied the application to the extent it sought a condominium conversion on the ground conversion to condominiums was prohibited by the Richmond Municipal Code where the conversion would result in a condominium project of less than five units. (See 7/13/2026 Order.)

The Court sustained the defendants' demurrer to Plaintiff's FAC, including on the ground that the FAC failed to allege sufficient facts to demonstrate exhaustion of Plaintiff's administrative remedies. (7/13/2026 Order.) Though the Court expressed doubt as to Plaintiff's ability to amend to plead exhaustion, the Court granted Mr. Malboubi leave to amend to amend to allege either that he appealed to the City Council or facts excusing his exhaustion of that remedy. Plaintiff filed his 2AC on July 27, 2026.

Legal Standards for Ruling on Demurrer

In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In general, the same rules of pleading and practice applicable to civil actions apply in writ proceedings, except as otherwise specifically provided. (Code Civ. Proc. § 1109; *Boren v. State Personnel Board* (1951) 37 Cal.2d 634, 638.)

In determining whether the complaint states a claim for relief, the Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) Statutory causes of action must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (See also *Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.)

The Court also considers matters of which the Court can properly take judicial notice. (*Carlloss, supra*, 242 Cal.App.4th at 123.) (*See also Evans, supra*, 38 Cal.4th at 6.) "As a general rule in testing a pleading against a demurrer the facts alleged in the pleading are deemed to be true, however improbable they may be. [Citation omitted.] The courts, however, will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed. [Citations omitted.]" (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 [emphasis added].) (*See also Sarale v. Pacific Gas & Electric Co.* (2010) 189 Cal.App.4th 225, 245 [holding exhibit attached to the complaint contradicted the allegation that no easement existed, stating that the court accepts as true the facts appearing in exhibits attached to the complaint, and if the facts appearing in the exhibit "contradict those expressly pleaded, those in the exhibit are given precedence. [Citations.]" [Citation omitted.]").) A demurrer may be sustained based on judicially noticed documents or facts, even if they contradict allegations of the complaint. (*Evans, supra*, 38 Cal.4th at 6, 7 fn. 2, 8 fn. 3, and 9 fn. 5.)

Defendants' Reliance for This Demurrer on Prior Requests for Judicial Notice

Defendants' notice of the demurrer states the demurrer to the 2AC is based in part on the Defendants' request for judicial notice filed March 6, 2026 in support of their demurrer to the FAC. In that filing, Defendants asked the Court to take judicial notice of: (1) a Planning Application Form pertaining to the Property apparently signed by Plaintiff (Def. RJN Exh. 11); (2) "Attachment 1" City of Richmond Planning Commission Resolution No. 26-01 dated January 15 2026 (Def. RJN Exh. 12); (3) Notice of Action by the City of Richmond Planning Commission dated January 21, 2026 (Def. RJN Exh. 13); and (4) Notice of Entry of Order dated February 26, 2026, attaching the Court's January 27, 2026 Order adopting the Court's January 26, 2026 tentative ruling (Def. RJN Exh. 14). (Evid. Code § 452(c) and (d).) In the March 6, 2026 RJN, Defendants also asked the Court to take judicial notice of the documents previously subject to Defendants' request for judicial notice and supplemental request for judicial notice filed in connection with Defendants' demurrer to the original complaint. Those documents are described at length in the January 26, 2026 tentative ruling, adopted as the Order of the Court by Order filed January 27, 2026. (Def. RJN Exh. 14 [1/27/2026 Order p. 2].) Defendants specifically requested judicial notice of the various articles and specific sections of the Richmond Municipal Code ("RMC") identified in the prior ruling and Defendant's prior RJNs, which are the proper subject of judicial notice under Evidence Code sections 452(b) and (c).

The Court will take judicial notice of the documents subject to the Defendants' prior judicial notice requests, subject to the general limits on judicial notice. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1569 [judicial notice of prior order or judgment].) Though a demurrer is not a proper procedural vehicle for resolving factual disputes (*Fremont Indemnity, supra*, 148 Cal.App.4th at 113-115), the allegations of a complaint are not required to be accepted as true if they are contradicted by matters subject to judicial notice. (*Evans, supra*, 38 Cal.4th at 638 Cal.4th at 6, 7 fn. 2, 8 fn. 3, and 9 fn. 5 [in which the Court took judicial notice of a City resolution, legislative history, a memorandum from a city manager, minutes, a city attorney's opinion, and a letter, that were alleged in the original complaint but not the operative complaint, from which both sides quoted, finding "no potential dispute exists as to the letter's language, allowing its consideration on demurrer" and stating, " "[A] complaint otherwise

good on its face is subject to demurrer when facts judicially noticed render it defective." [Citation.]" [Citations omitted.]")

Plaintiff's Request for Judicial Notice

Plaintiff asks the Court to take judicial notice of its prior rulings of January 26, 2026 (actually adopted by the Court by order filed January 17, 2026) on the defendants' demurrer to the original complaint and July 13, 2026. The Court **GRANTS** the request, subject to the limitation on judicial notice of a prior order or judgment. (*Sosinsky, supra*, 6 Cal.App.4th at 1569 [judicial notice of prior order or judgment].)

Analysis

The 2AC alleges five causes of action, including a petition for writ of mandate (1st C/A), abuse of discretion (2nd C/A), misapplication of Municipal Code (3rd C/A), failure to perform mandatory duty (4th C/A), and declaratory relief (5th C/A). Defendants demur to the 2AC in its entirety for lack of exhaustion of administrative remedies and failure to allege state facts sufficient to state the causes of action pleaded.

A. Demurrer to the Entire Complaint for Failure to Exhaust Administrative Remedies

Defendants reassert their contention that Plaintiff failed to exhaust his administrative remedies. The factual basis of their argument, however, is different from the basis for the failure to exhaust argued in support of Defendants' demurrer to the original complaint.

1. Legal Background

"A demurrer may properly be sustained based on the failure to adequately plead exhaustion of administrative remedies. [Citation omitted.] In order to withstand a demurrer for failure to allege exhaustion of available administrative remedies, the plaintiff must allege facts showing that he did exhaust administrative remedies or facts showing that he was not required to do so. [Citations omitted.]" (*Tejon Real Estate, LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 156 [emphasis added]). The exhaustion doctrine does not apply if there is no administrative remedy provided or if the remedy is inadequate. (*Tejon Real Estate, supra*, 223 Cal.App.4th at 155-156 ["'With limited exceptions, . . . where an adequate administrative remedy is provided . . . , resort to that forum is a "jurisdictional" prerequisite to judicial consideration of the claim.'" [Citation omitted, emphasis added.]"]). "The exhaustion doctrine 'is primarily grounded on policy concerns related to administrative autonomy and judicial efficiency,' permitting 'an agency to reach a final decision without interference from the courts' while enabling any necessary 'judicial review by allowing the agency to draw upon its expertise and develop a factual record for the court's consideration.' [Citation omitted.]" (*Lafayette Bollinger Development LLC v. Town of Moraga* (2023) 93 Cal. App. 5th 752, 770.)

The futility exception is a narrow one. (*Steinhart v. County of Los Angeles* (2010) 47 Cal. 4th 1298, 1313.) It "applies only if the party invoking it can positively state that the administrative agency has declared what its ruling will be in a particular case. [Citation omitted.]" (*Id.* at 1313-1314.) It requires proof that when the appeal would have been submitted to the City Council in this case, the City Council had "predetermined its position." (*Id.* at 1314 [rejecting argument that the position the County took in a subsequent court action alone was a basis for invoking the futility exception].)

2. Plaintiff's Allegations

Based on judicially noticeable facts and Plaintiff's allegations in the 2AC, Plaintiff's application was transferred to a new city planner after Mr. Lopez's retirement. (2AC ¶¶ 76-81.) Plaintiff alleges that he received the notice of public hearing setting a hearing on his application for January 15, 2026, roughly six months after the lawsuit was commenced while Defendants' demurrer was still pending. (2AC ¶ 82.) Defendants scheduled and held a hearing on Plaintiff's application for the lot split/condominium conversion before the City Planning Commission. (2AC ¶¶ 76-91 and Exhs. AA-DD.) Plaintiff's 2AC acknowledges the staff report that addressed Plaintiff's position that he was seeking approval of a condominium conversion and detailed the reasons why such the Property did not qualify for a condominium conversion, among other reasons based on RMC section 15.04.711.020 A.4 and B. (2AC ¶¶ 89-94 and Exh. DD.)

The Planning Commission adopted a resolution addressing Plaintiff's application, Resolution 26-01, which approved the lot split with the condition of moving the three utility boxes and denied approval of Plaintiff's application to the extent it sought a condominium conversion because the conversion of the Property to a two-unit condominium project is prohibited by the RMC. (Def. RJN Exh. 12; RMC § 15.04.711.020 B.) The Notice of Action by the City of Richmond Planning Commission dated January 21, 2026 (Def. RJN Exh. 13) explicitly advised of the right to appeal the Planning Commission decisions to the City Council within 10 days.

In sustaining the City Defendants' demurrer to the FAC for lack of exhaustion, the Court granted Plaintiff leave to amend to allege facts, if he could, demonstrating that he had exhausted the administrative remedy available to him from the Planning Commission decision by appealing the decision to the City Council or facts demonstrating that he was not required to exhaust that remedy before obtaining judicial review of the Planning Commission decision. Mr. Malboubi clearly acknowledges he had notice of the Planning Commission hearing and its determination in Resolution 26-01. He does not allege that he appealed the decision to the City Council.

3. Plaintiff's Alleged Excuses for Lack of Exhaustion or Futility

Mr. Malboubi allege that he was excused from pursuing the available administrative remedy of appeal to the City Council for a few reasons. The reasons he cites are (a) because he had already filed this action, (b) because the City allegedly did not present his correct condominium conversion application to the Planning Commission for the January 15, 2026 public meeting, (c) because exhaustion of his administrative remedies "was excused as futile because no final administrative decision was rendered upon Plaintiff's condominium/townhouse Planning Application," and (d) because alleged "substitution" of his application "prevented the administrative process from considering and determining Plaintiff's actual application." (2AC ¶¶ 76-94.)

Plaintiff cites no legal authority that the Planning Commission could not hold the hearing on his application for a lot split or condominium conversion after this action was filed. Mr. Malboubi has presented no legal authority in his opposition that the Planning Commission did not have the ability to set and conduct a hearing on his application despite the pendency of this action. Indeed, he complained in his FAC that the City had denied him a hearing on the application and sought an order directing the City to hold a hearing on his application asking for a condominium conversion. (FAC pp. 45-53; 7/13/2026 Order.) The judicially noticed documents and allegations in the 2AC show the City provided that hearing with an opportunity for an administrative appeal to the City Council, and Mr.

Malboubi failed to pursue that available administrative remedy. (*See Casa Blanca Beach Owners Assn. v. County of Santa Barbara* (2024) 102 Cal.App.5th 1303, 1308-1310 [affirming determination that plaintiff failed to exhaust administrative remedies when civil action filed which administrative proceedings were still pending and final decision had not been rendered]; *McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 284-289 [affirming order sustaining demurrer and dismissal for lack of exhaustion where appeal to Coastal Commission was available, though the plaintiff had filed the civil action and claimed the County action was void].)

The timing of events in this case and before the City Planning Commission are notable. Plaintiff pressed the City for a hearing before the Planning Commission in early March 2025 which the City failed to provide before Plaintiff filed his original complaint on July 31, 2025. (2AC ¶¶ 59-75.) The City demurred to the original complaint on numerous grounds, including failure to exhaust administrative remedies. The hearing on the City's demurrer was originally set for December 22, 2025 but was continued on the Court's own motion to January 26, 2026. In sustaining the demurrer to the writ of mandate cause of action, the Court indicated that Plaintiff might be able to state a cause of action based on the City's obligation to set a hearing and determine Plaintiff's application. (1/27/2026 Order.)

Before the scheduled January 26, 2026 hearing on the demurrer to the original complaint in which the City asserted lack of exhaustion, the City had in fact set a hearing on the application before the Planning Commission with notice to Mr. Malboubi, conducted a public hearing on the application, adopted Resolution 26-10, a written resolution determining the application both as a proposed lot split with conditions and as a proposed condominium conversion, and issued a January 21, 2026 Notice of Action with notice of Mr. Malboubi's right to appeal the Planning Commission decision. (2AC ¶¶ 76-94 and Exh. DD; Defs. RJN Exhs. 12, 13.) This judicially noticeable information was not before the Court when it ruled on the demurrer, but had the Court been apprised of the information, the Court's ruling on the lack of exhaustion would likely have been different.

On February 2, 2026, after Mr. Malboubi had been granted a hearing and a determination was made on his application that he was informed by the Notice of Action he could appeal to the City Council, and after the deadline to appeal based on the Notice of Action had passed, Mr. Malboubi apparently intentionally did not pursue an appeal to the City Council and instead filed his FAC in which he asked for the City to set a hearing on his application for a condominium application. (FAC pp. 45-53; 2AC ¶¶ 78-82, 89-94.) Mr. Malboubi's FAC made no mention of the fact the City granted and held a public hearing and made a written determination on his application, with an opportunity for an appeal.

The allegations of the 2AC essentially concede he received the hearing he was demanding in the FAC (FAC pp. 45-53), the Notice of Action informed him of his right to appeal the Planning Commission decision to the City Council (Defs. RJN Exh. 13), but he instead claims he was excused from having to appeal the decision because the Planning Commission allegedly did not consider his proper application for a condominium conversion. (2AC ¶¶ 76-94.) Mr. Malboubi's allegations that the Planning Commission did not consider his application for a condominium conversion are expressly contradicted by Resolution 26-01 and the Notice of Action, as well as the staff report for the Planning Commission hearing, and they ignore the opportunity he was given to add documentation for his application, which he refused to do. (2AC ¶ 89 and Exhs. AA-DD; Defs. RJN Exhs. 12, 13.) While the Court does not take judicial notice of the truth of the finding recited in Resolution 26-01 that Plaintiff

did not file a condominium conversion application, because the fact is reasonably disputable, the Court takes judicial notice of what the Planning Commission actually did, which is that it denied any application by Plaintiff for a condominium conversion of the Property as violative of the RMC. (Defs. RJN Exhs. 12, 13.)

Plaintiff had a right to appeal the adverse Planning Commission decision to the City Council. Mr. Malboubi does not deny the right to appeal existed in the allegations of the 2AC or his opposition. If Mr. Malboubi believed the Planning Commission incorrectly found that he had not filed a formal application for a condominium conversion, or if he believed the Planning Commission did not have before it his proper condominium conversion application or that it did not consider his complete condominium conversion application documents, Mr. Malboubi had the administrative remedy of an appeal to the City Council to vacate and reverse the Planning Commission's decision on those grounds, or others that he might raise. But Mr. Malboubi did not pursue that administrative remedy, as he concedes.

The errors that he believes occurred in the hearing before the Planning Commission are not an excuse for not appealing the Planning Commission decision to the City Council. To the contrary, they demonstrate why Plaintiff was required to pursue the available administrative appeal remedy so that the City had an opportunity to correct any errors made by the Planning Commission first before any judicial review. The exhaustion requirement has not been satisfied where a clear administrative remedy to correct any such errors existed, but Plaintiff did not pursue it. The allegation that exhaustion was futile because a final administrative decision was not made on his condominium/townhouse application is a further admission that there has been no administrative exhaustion and that an administrative decision could still be made on what he contends is his true or complete condominium conversion application. (2AC ¶ 94.)

The demurrer to the entire 2AC on the ground of Plaintiff's failure to allege facts showing exhaustion of administrative remedies, or an excuse for not exhausting such remedies, is **SUSTAINED, WITHOUT LEAVE TO AMEND.**

B. Petition for Writ of Mandate (1st C/A)

As to the first cause of action, Plaintiff alleges a petition for writ of mandate under Code of Civil Procedure section 1085.

1. Writ of Mandate Standards

Code of Civil Procedure section 1085 provides that "A writ of mandate may be issued by any court to any . . . board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station . . ." (Code Civ. Proc. § 1085(a).) "To obtain a writ of mandate, 'the petitioner must show there is no other plain, speedy, and adequate remedy; the respondent has a clear, present, and ministerial duty to act in a particular way; and the petitioner has a clear, present and beneficial right to performance of that duty.'" [Citation, internal quotation marks omitted.] (*California Privacy Protection Agency v. Superior Court* (2024) 99 Cal.App.5th 705, 721 [emphasis added].) (*See also Sacks v. City of Oakland* (2010) 190 Cal.App.4th 1070, 1081.)

" 'A ministerial act is an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists.' [Citation omitted]."

(*Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916.) " 'Put another way, a ministerial act is one "[w]here a statute or ordinance clearly defines the specific duties or course of conduct that a governing body must take," thus "eliminat[ing] any element of discretion." ' [Citation, internal quotation marks omitted.]" (*California Privacy Protection Agency, supra*, 99 Cal.App.5th at 721 [emphasis added].) "While a writ may issue against a county, city or other public body or against a public officer, ' "the writ will not lie to control discretion conferred upon a public officer or agency. [Citations.] . . . " ' [Citation omitted.]" (*Sacks, supra*, 190 Cal.App.4th at 1081 [emphasis added].) Further, "Normally, mandate will not lie to control a public agency's discretion, that is to say, force the exercise of discretion in a particular manner." (*County of Los Angeles v. City of Los Angeles* (2013) 214 Cal. App. 4th 643, 654.)

2. Application of Standards to the 2AC

Plaintiff's 2AC, in conjunction with matters which are properly within the scope of judicial notice, does not allege facts stating a claim for a writ of mandate under the standards of Code of Civil Procedure section 1085 and the case law above. First, Plaintiff alleges he applied to the City to convert his two-unit duplex into a condominium project. RMC section 15.04.711.020 A.4 and B prohibits the conversion of a property to a condominium project if the conversion would result in a condominium project consisting of fewer than five units. He has therefore not alleged facts in the 2AC showing that the City has a clear, present and ministerial duty to process an application for conversion of a duplex to a condominium project that would be comprised of only two units based on RMC section 15.04.711.020.

In addition, the authorities indicate that approval of a subdivision, which includes a condominium conversion, is a matter of discretion with the City. (Govt. Code §§ 66424 [defining subdivision], 66473, 66474, and 66474.1 [city approval, conditional approval, or denial of approval of a parcel map based on state law and local ordinances]; *Youngblood v. Board of Supervisors* (1978) 22 Cal.3d 644, 653-656 [finding no "abuse of discretion" in approval of tentative map for subdivision as consistent with general plan, stating "it is only fair to the developer and to the public interest to require the governing body to render its discretionary decision whether and upon what conditions to approve the proposed subdivision when it acts on the tentative map"].) The Court in its January 27, 2026 ruling on the initial demurrer set forth an exhaustive analysis of various provisions of the Civil Code and the Subdivision Map Act ("SMA") addressing their application to condominiums and the subdivision at issue here and the discretion granted to a public agency in approving a subdivision, which the Court will not reiterate here. (See Def. RJN Exh. 14 pp. 7-8.) Since the approval of the subdivision proposed by Plaintiff is discretionary, Plaintiff has not alleged facts in the FAC showing that Defendants have a mandatory, ministerial duty that can be the subject of the writ of mandate cause of action.

The relief sought by Plaintiff in this cause of action in the 2AC highlights further why Plaintiff has failed to state a claim for a writ of mandate. (2AC p. 30.) The relief he asks the Court to grant is an order requiring the City not to determine the condominium conversion under RMC section 15.04.711.020, which prohibits the conversion of a project that would result in a condominium project of less than five units and in effect to direct the City to allow him to provide homeowners association documents and to approve the condominium conversion without requiring the relocation of the utilities. (2AC p. 30.) Plaintiff is asking Court to direct the City in the manner in which to exercise its discretionary powers, which the Court cannot do. (*Lafayette Bollinger Development Co.,*

supra, 93 Cal.App.5th at 772 [traditional mandate cannot be used to compel a public entity to use its discretionary powers in "a particular manner," but only to exercise its discretion when it has failed to act].)

To the extent Plaintiff claims that the City is in some manner estopped from not approving his condominium conversion or imposing conditions of moving the utilities based on statements by Lopez through June 2025, before the Planning Commission reviewed and addressed the application, the argument fails. The facts alleged show that Plaintiff was aware that Lopez himself was not the decision-maker on the application based on, among other things, his allegations regarding the March 5, 2025 email from Lopez addressing the Planning Director's position on the application. (See, e.g., 2AC ¶¶ 35-42 and Exh. P.) Plaintiff alleges no facts and does not point to any provision of the RMC that Lopez had authority to bind the Planning Director or Planning Commission to any approval or course of action. (See *Burchett v. City of Newport Beach* (1995) 33 Cal.App.4th 1472, 1479 [party dealing with public officer is presumed to know the limits of the officer's powers].)

These grounds alone are sufficient to support that the first cause of action fails to allege facts stating this cause of action. The demurrer to the first cause of action for a petition for writ of mandate under Code of Civil Procedure section 1085 is **SUSTAINED, WITHOUT LEAVE TO AMEND**. The Court need not reach any additional grounds that may make this cause of action legally deficient.

C. Abuse of Discretion, Misapplication of Municipal Code (2nd, 3rd C/As)

Plaintiff alleges the second cause of action for abuse of discretion is based on Defendants' arbitrary and capricious handling of Plaintiff's condominium conversion application. Plaintiff alleges the abuse of discretion was in part based on the City's alleged misapplication of RMC section 15.04.711.020, which he contends does not apply to his duplex conversion. The Court has previously, repeatedly rejected Plaintiff's contention based on the plain language of RMC section 15.04.711.020 A.4. and B.

He also alleges and attaches documentation concerning projects certain condominiums in Richmond with less than five units. The documents show either that any conversion was approved decades ago (Roosevelt in 1980) and not under the current RMC section 15.04.711.020 which precludes such conversions for less than five units, or only show when the properties were built, which was the early 1980s, without showing whether they were built as condominiums or converted, and if converted, when they were converted. (2AC ¶¶ 44-48 [Roosevelt property converted to condominiums in 1980], 50, 53 [Barrett Property built as condominiums and "approved as condominium in 1984"], 56 [photos of MLS records for condominiums on property listings showing they were built in the early 1980s], and Exhs. S, T, and V-1-V-3.) That the properties shown in Exhibits V-1 to V-3 were sold as condominiums does not demonstrate that the City approved any conversion of the buildings to condominiums notwithstanding RMC section 15.04.711.020 A.4. and B. Plaintiff has not shown that the Richmond Municipal Code in effect at the time of any approval of a conversion of those properties, if any of the properties were condominium conversions rather than built as condominiums, included the same restriction on conversion of properties with less than five units as found in the current RMC section 15.04.711.020. Further, the approval of the Roosevelt condominium conversion was more than 40 years ago. Plaintiff has not alleged any facts that demonstrate the City's decision was arbitrary, capricious or completely unfounded in the current circumstances more than 40 years later. Plaintiff has not alleged facts demonstrating any arbitrary or capricious action by the City in following the current RMC provision in effect when Plaintiff made his condominium conversion

application.

He alleges the third cause of action for misapplication of the Municipal Code based on the same ground cited above, namely that RMC section 15.04.711.020 does not apply to his proposed two-unit condominium conversion. The statute expressly bars conversion of units that would result in less than five units when converted. (RMC §§ 15.04.711.020 A.4. and B.)

The allegations of the 2AC and exhibits, and documents of which the Court has taken judicial notice, do not show that Plaintiff has stated these causes of action. To state a claim for abuse of discretion, Plaintiff must allege facts sufficient to show that Defendants acted in a manner that was "arbitrary, capricious, or entirely lacking in evidentiary support." (*Sacks, supra*, 190 Cal.App.4th at 1082.) Where, as here, the claim is based on a city's interpretation and implementation of its own ordinance, the Court accords "great weight to the administrative agency's interpretation and implementation of the ordinance it was charged with executing. [Citations omitted.]" (*Id.* at 1091.) "In determining whether a public agency has abused its discretion, the court may not substitute its judgment for that of the agency, and if reasonable minds may disagree as to the wisdom of the agency's action, its determination must be upheld. [Citation omitted.]" (*County of Los Angeles, supra*, 214 Cal. App. 4th at 654.)

Whatever discussions, documents, and interim reviews may have occurred, the "determination" reflected in the March 5, 2025 email (FAC Exh. N) and the Planning Commission Resolution No. 26-01 essentially reached the same result. The denial of the condominium conversion of a duplex is consistent with RMC sections 15.04.711.020 A.4 and B, so Plaintiff has not alleged facts demonstrating an abuse of discretion or misapplication of those sections in denying his condominium conversion in Resolution 26-01. The Court finds the facts alleged do not meet the standard to demonstrate an abuse of discretion under *Sacks, supra*, nor do they demonstrate that Defendants misapplied the RMC.

The demurrers to the second and third causes of action are **SUSTAINED, WITHOUT LEAVE TO AMEND.**

D. Failure to Perform Mandatory Duty, Govt. Code § 815.6 (4th C/A)

Government Code section 815.6 provides, "Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty." (Govt. Code § 815.6 [emphasis added].) A statutory cause of action must be pled with specificity. (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.)

"The elements of liability under Government Code section 815.6 are as follows: 'First and foremost, application of section 815.6 requires that the enactment at issue be obligatory, rather than merely discretionary or permissive, in its directions to the public entity; it must require, rather than merely authorize or permit, that a particular action be taken or not taken. [Citation.] It is not enough, moreover, that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion. [Citation.]" [Citation omitted, italics in original.] Courts have construed this first prong rather strictly, finding a mandatory duty only if the enactment 'affirmatively imposes the duty and provides implementing guidelines.' [Citations omitted.] [¶]

'Second, but equally important, section 815.6 requires that the mandatory duty be "designed" to protect against the particular kind of injury the plaintiff suffered. The plaintiff must show the injury is " 'one of the consequences which the [enacting body] sought to prevent through imposing the alleged mandatory duty.' " [Citation.] . . . If these two prongs are met, the next question is whether the breach of the duty was a proximate cause of the plaintiff's injury. [Citations omitted.]" (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 898 [quoting among others *Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490, 498, 499].)

As in the case of Plaintiff's original complaint and the FAC, Plaintiff does not cite any statute imposing an affirmative, mandatory, nondiscretionary duty on the City, and specifically a mandatory duty which is designed to protect against an injury Plaintiff is claiming he has suffered. To the extent Plaintiff alleges the mandatory duty is for the City to make a determination of his condominium conversion application, issue a written determination, and provide a pathway for appeal, Resolution 26-01 and the Notice of Action show that the City complied with that duty. Documents subject to judicial notice show he obtained the relief he contends is mandated and that he seeks as the relief on this cause of action. He was given an opportunity to make an administrative appeal to address any errors in the City's actions leading up to Resolution No. 26-01 and the Notice of Action, including errors in the Planning Commission decision-making process or ultimate determination, and did not pursue the available appeal.

To the extent Plaintiff alleges the mandatory duty is to approve his condominium conversion (or lot split) without requiring the three utility meters to be moved, Plaintiff has not alleged facts or cited law that the City had that mandatory duty. Rather, applicable authority cited above shows approval of subdivisions with conditions is within the City's discretion.

The demurrer to the fourth cause of action for failure to perform a mandatory duty is **SUSTAINED, WITHOUT LEAVE TO AMEND.**

E. Declaratory Relief (5th C/A)

Defendants contend that an action for declaratory relief may not be maintained to challenge an agency's administrative decision, citing *Tejon, supra*, and *City of Pasadena v. Cohen* (2014) 228 Cal.App.4th 1461. The Court in *Tejon* explained that though declaratory relief may be appropriate to challenge the constitutionality of a statute or regulation, "[w]here, as here, the challenge is to a regulation's 'application to the lands of the complaining part[y], . . . the proper and sole remedy [is] administrative mandamus.' [Citations omitted.]" (*Tejon, supra*, 223 Cal.App.4th at 154-155 [concluding the demurrer to the declaratory relief claim properly sustained, "[b]ecause [plaintiff's] complaint and FAC improperly sought declaratory relief to review a purported administrative decision."].) In addition, plaintiff cannot use a claim for declaratory relief to try to evade the failure to exhaust his administrative remedies. (*Casa Blanca Beach Owners Assn., supra*, 102 Cal.App.5th at 1311.)

In *City of Pasadena, supra*, 228 Cal.App.4th 1461, the Court reversed the trial court's order granting a preliminary injunction on a declaratory relief claim. Citing the "settled" rule " 'that an action for declaratory relief is not appropriate to review an administrative decision.' [Citations omitted.]" The Court of Appeal explained that the trial court instead "could have simply denied injunctive relief and dismissed the action on this ground (with or without leave to amend), or it could have construed the City's pleading as one seeking traditional mandate and (if it has adequately stated the City's

entitlement to such relief) ruled on the merits of the challenge to the administrative determination [citations omitted], and issued the writ or denied the petition." (*Id.* at 1467 [emphasis added].)

The existence of the Resolution No. 26-01 shows that Planning Commission review of his condominium conversion application occurred, and a Notice of Action with appeal information was issued. (Def. RJN Exhs. 12, 13.) The declaratory relief cause of action under the authorities cited above is not the appropriate means to review an administrative decision, i.e., the merits of the Planning Commission determination in Resolution 26-01 and Notice of Action. To the extent the declaratory relief cause of action seeks a declaration of Plaintiff's rights founded on the other four causes of action, including that he is entitled to have his condominium conversion approved with only the conditions to which he does not object, including in spite of the RMC provisions barring a two-unit conversion, then the declaratory relief cause of action is legally deficient for the same reasons those claims fail to state causes of action

The demurrer to the declaratory relief cause of action is **SUSTAINED, WITHOUT LEAVE TO AMEND.**

Conclusion and Ruling

The Court **SUSTAINS, WITHOUT LEAVE TO AMEND**, Defendants' demurrer to the 2AC in its entirety and to each cause of action. Having given Plaintiff multiple opportunities to attempt to allege legally viable claims against the City, the Court finds no basis to grant Plaintiff any further attempt to amend.

9. 9:00 AM CASE NUMBER: C25-02761
CASE NAME: INGRID MARROQUIN VS. CHINA WALL BUFFET INC.,
LEAVE TO FILE CROSS-COMPLAINT
FILED BY: KUMAR, TARA
TENTATIVE RULING:

Defendant Tara Kumar ("Defendant") filed a Motion for Leave to File Cross-Complaint on May 7, 2026 (the "Motion for Leave to File"). The Motion for Leave to File was initially set for hearing on September 28, 2026.

Disposition

The Court finds and orders as follows:

1. The Motion for Leave to File has been **CONTINUED** to December 28, 2026 by the Court's case management orders issued September 11, 2026.
2. The moving party to serve an amended notice of motion.